Revision Date:
December 1, 2024

Background:
A minor parent is a pregnant or parenting minor under age 18 who has never been married. The minor parent must be residing in an adult-supervised living situation. The minor parent requirement is also applicable to a minor parent who is an undocumented noncitizen or receives Supplemental Security Income/State Supplementary Payment (SSI/SSP) benefits.

Purpose:
The purpose of this section is to define the minor parent requirements. This material revision is due to sunset review. No policy or procedure changes have been made.

Policy:
Minor Parent Requirement
To meet the minor parent (residence) requirement the minor parent must live with one of the following:

- A senior parent.
- A legal guardian.
- An adult relative (a relative age 18 or older who is within the degree of relationship specified for caretaker relatives.
- In a licensed home (a state licensed adult-supervised supportive living arrangement, which includes a group home or a maternity home).

When a minor parent does not live in an appropriate living situation or meet one of the exceptions listed below, the minor parent and/or the minor parent's Assistance Unit (AU) is ineligible for CalWORKs.

If two or more sibling minor parents live with their unaided senior parent, a separate eligibility determination must be made for each minor parent. If both unmarried minor parents of the child live together, then each minor parent must be living in an appropriate adult-supervised living arrangement or meet one of the specified exceptions. If only one of the minor parents meets this condition of eligibility, only that minor parent and the child are aided. The minor parent who does not meet the minor parent provisions is excluded from the AU. Any income from that minor parent is counted in the budgeting process as a non-AU member.

Exemptions to Minor Parent Requirements
The minor parent and their dependent child are exempt from the minor parent requirement when any of the following conditions exist (an exception must exist for each senior parent):

- Deceased.
- Whereabouts Unknown.
- Not allowed to Live in Home.
- Health/Safety.
- Live Apart for 12 Months.
- Emancipation.

Minor Parent Claiming an Exemption

When a minor parent claims to have an exemption take all the following actions:

- Verify the exemption.
- Grant CalWORKs if all other eligibility conditions are met.
- Make a referral to the Department of Child and Family Well Being (CFWB) - Minor Parent Services (unless the minor is emancipated) - CFWB will complete assessments within 30 days of the referral (the referral should state that this is a minor parent investigation).

Minor Parent Eligibility Determination

When a minor parent is eligible to be included in their own AU, it is not necessary that the senior parent be present at the application/annual redetermination interview. It is the minor parent's responsibility to complete the required forms and provide all other necessary information.

All minor parents are required to complete a CW 25 - Supplemental Statement of Facts - Minor Parent and a SAR 23 - Supplement to the Statement of Facts during any of the following:

- Application.
- Annual redetermination.
- When the minor has been living in a supervised setting and there is a change of address and/or living arrangement.

Aid will be denied or discontinued when there is a failure or refusal to complete and return the CW 25 or SAR 23 after timely notification.

Minor Parent Who Claims a Risk

When a minor parent alleges that living with a senior parent/legal guardian will jeopardize the physical or emotional health or safety of themselves or their child, a referral must be made to CFWB to have the allegation supported. Also, staff must contact the CFWB Child Abuse Hotline at (858) 560-2191, or the State of California toll free number at (800) 344-6000 to report the safety concern.

Refer to HHSA Chapter: Policy, Strategy and Program Development No. HHSA-H-1 on how to report suspected child abuse/neglect:
http://insite.sdcounty.ca.gov/hhsa/Misc%20Policies/Child%20Abuse%20Reporting.pdf

The referral must be documented in the case file.

Minor Parent Risk Assessment

The CFWB social worker will complete the risk assessment within 20 days. Immediate need risk assessments will be completed within 15 days. The CFWB portion of the CW 25 will be completed by the CFWB social worker. If the CFWB social worker determines that there is a safety issue, aid will be granted if all other eligibility conditions are met. If the CFWB social worker determines that there is not a safety issue, aid will be denied or discontinued if the minor parent does not meet the Minor Parent Requirement or other exception.

Responsible Adult as the Payee
Unless the minor parent is exempt from the minor parent requirement, CalWORKs payments will be issued, on behalf of the minor parent, to the adult living in the home or to the licensed home.

- Adult Refusal
  If the adult living in the home refuses to act as payee on behalf of the minor parent, the minor parent may be the payee.
- Minor Parent Refusal or Failure to Cooperate
  If the minor parent refuses or fails to cooperate in obtaining verification of the adult's consent or refusal to act as payee on their behalf, the minor parent's AU is ineligible for CalWORKs.
- Determination That Minor Parent Should Be Payee
  Whenever it is determined to be in the best interest of the minor parent and their child, the minor parent may be the payee of their case instead of the adult living in the home with the minor parent.

Note:

- Form CW 25A - Payee Agreement for Minor Parent is required as a condition of eligibility, when the minor parent lives in the home of a senior parent, legal guardian, or adult relative.
- A CW 25A is not needed when the minor resides in an adult-supervised living arrangement. In this situation use the facility as the payee.

Procedure:
Questions & Answers - 41-500.H1 Minor Parent Requirement
Refer to the document, located in Eligibility Essentials/CalWORKs site, for different examples of Minor Parent scenarios.

Impacts:
None.

References:
Eligibility and Assistance Standards (EAS) 89-201.

Sunset Date:
This policy will be reviewed for continuance by December 31, 2027.

Approval for Release:

12-12-24

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Self-Sufficiency Services